

BC478744 BC478744

County: los-angeles

Division: Civil Law and Motion

Department: 732

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Case Number: BC478744 Hearing Date: August 4, 2026 Dept: 732

Ray W. Exley v. Barry Harlan, et al.

Tuesday,

August 4, 2026

CASE NUMBER: BC478744

UNOPPOSED

Cross-Complainant

Lewit, Hackman, Shapiro, Marshall, & Harlan's Motion to Substitute Personal Representative for Deceased Cross-Defendant, Allowing Action to be Continued against Personal Representative, and Allowing the Filing of a supplemental Cross-Complaint

Facts:

This is a legal malpractice action. The Second Amended Complaint (SAC) alleges as follows. Plaintiff Ray W. Exley (Plaintiff) employed Defendant Evan E (Schenkel) to represent him in a marital dissolution action. (SAC ¶ 8.) Schenkel unreasonably overbilled Plaintiff and was negligent in his representation, failing to allege appropriate claims or conduct adequate discovery. (SAC ¶¶ 10–25.)

Plaintiff also employed Defendants Barry Harlan (Harlan) and the firm Lewitt, Hackman, Shapiro, Marshall, & Harlan (LHSMH) to represent him in the dissolution action and a concurrent civil action

against Plaintiff's ex-wife. (SAC ¶ 26.) Harlan and LHSMH negligently represented Plaintiff in the civil and dissolution action by failing to allege appropriate claims and failing to conduct adequate discovery. (SAC ¶¶ 27–28.)

Schenkel's First Amended Cross-Complaint (FAXC) alleges that Plaintiff has failed to pay amounts owed for services rendered. (FAXC at p. 6.) Plaintiff has converted funds upon which Schenkel had a valid attorney lien. (FAXC at pp. 15–16.) Although Plaintiff obtained a court order allowing for the receipt of such funds, obtained with the wrongful assistance of his current counsel, Kaplan, Kenegos & Kadin (Kaplan), such order was obtained by fraud and was a deliberate interference with Schenkel's contract rights. (FAXC at pp. 16–19.)

LHSMH's Cross-Complaint (XC) alleges that Plaintiff has breached a contract to pay fees owed for services rendered. (XC at p. 2.)

Procedural

History: Plaintiff filed the initial Complaint on February 10, 2012. He filed an FAC on October 3, 2012, and filed the SAC on September 5, 2013, alleging six causes of action:

1.
Breach of Fiduciary Duty (Schenkel)
2.
Legal Malpractice (Schenkel)
3.
Legal Malpractice (Harlan, LHSMH)
4.
Breach of Written Contract (LHSMH)
5.
Breach of Oral Contract (Harlan, LHSMH)
6.
Declaratory Relief (Schenkel)

LHSMH filed a Cross-Complaint on August 9, 2012, alleging four causes of action:

1.

Breach of Contract

2.

Open Book Account

3.

Account Stated

4.

Common Counts

Schenkel filed a Cross-Complaint on November 8, 2013, alleging 11 causes of action:

1.

Breach of Contract

2.

Open Book Account

3.

Account Stated

4.

Services and Materials

5.

Declaratory Relief

6.

Enforcement of Attorney Lien

7.

Money Had and Received

8.

Conversion

9.

Constructive Trust

10.

Declaratory Relief

11.

Intentional Interference with

Contract

On July 1, 2014, the court denied Schenkel's anti-SLAPP motion, overruled Schenkel's demurrer to the SAC, and sustained Exley and sustained Kaplan and Exley's demurrer to Schenkel's cross-complaint as to the fifth through tenth causes of action, with leave to amend.

Schenkel filed the FAXC on February 17, 2015, alleging the same causes of action as the original complaint.

On March 26, 2015, this case was stayed pending the appeal of the underlying action and trial in a related federal court action.

On March 29, 2017, Plaintiff dismissed claims as to Harlan.

On August 11, 2021, this court denied Juliana M. Loza Exley's motion to be substituted as Plaintiff's successor in interest, without prejudice.

On February 16, 2023, at an OSC re: dismissal for failure to obtain administrator of estate, this court ordered Plaintiff's complaint dismissed.

On July 27, 2023, this court denied Loza-Exley's second motion to be a substituted as Plaintiff's successor in interest, reasoning that she had not secured appointment of an estate administrator and had not explained the delay. On the same date, the court entered Plaintiff's default.

On September 5, 2023, Loza-Exley filed a notice of

bankruptcy stay.

On May 30, 2024, the bankruptcy stay was lifted.

This court on October 11, 2024, continued hearing on the motion to vacate default to permit the filing of a motion to substitute successor in interest for Exley.

On July 22, 2026, this court overruled Cross-Defendant Kaplan, Kenegos, and Kadin's demurrer to the cross-complaint of Schenkel.

Cross-Complainant LHSMH filed the present motion to substitute personal representative on June 12, 2026. No opposition has been filed.

Analysis:

I.

MOTION

FOR SUBSTITUTION OF DEFENDANT

"[A] cause of action for or against a person is not lost by reason of the person's death, but survives subject to the applicable limitations period." (Code Civ. Proc. 377.20, subd. (a).)

"On

motion, the court shall allow a pending action or proceeding against the decedent that does not abate to be continued against the decedent's personal representative or, to the extent provided by statute, against the decedent's successor in interest, except that the court may not permit an action or proceeding to be continued against the personal representative unless proof of compliance with Part 4 (commencing with Section 9000) of Division 7 of the Probate Code governing creditor claims is first made." (Code Civ. Proc., § 377.41.)

(a)

An action or proceeding pending against the decedent at the time of death may not be continued against the decedent's personal representative unless all of the following conditions are satisfied:

(1)

A claim is first filed as provided in this part.

(2)

The claim is rejected in whole or in part.

(3)

Within three months after the notice of rejection is given, the plaintiff applies to the court in which the action or proceeding is pending for an order to substitute the personal representative in the action or proceeding. This paragraph applies only if the notice of rejection contains a statement that the plaintiff has three months within which to apply for an order for substitution.

(b)

No recovery shall be allowed in the action against property in the decedent's estate unless proof is made of compliance with this section.

(Prob.

Code § 9370.)

Defendant

and Cross-Complainant Lewit Hackman Shapiro Marshal & Harlan ("LHSMH") seeks leave to substitute Keenan Brown, administrator of the estate of Decedent Plaintiff and Cross-Defendant Robert Exley, as cross-defendant, and for leave to file a supplemental cross-complaint under Code of Civil Procedure § 464 describing the grounds upon which suit may lie against Brown. Per the declaration of Stephen T. Holzer, LHSMH filed its creditor's claim with Decedent's estate on March 11, 2022, and received a notice of rejection on April 22, 2026, following Brown's appointment on April 24, 2025. (Holzer Decl. ¶¶ 3–7.)

LHSMH

has demonstrated compliance with Probate Code § 9370 as required by Code of Civil Procedure § 377.41. No opposition to the present motion has been filed.

Accordingly,

the motion to substitute Keenan Brown for Decedent as Cross-Defendant, and to file a supplemental cross-complaint, is GRANTED.

Superior Court of

California

County of Los Angeles

Department 732

RAY W. EXLEY, M.D.,

Plaintiff,

v.

BARRY

HARLAN, et al.,

Defendants.

Case No.: BC478744

Hearing Date: August 4, 2026

[TENTATIVE] RULING RE:

Cross-Complainant Lewit, Hackman, Shapiro,
Marshall, & Harlan's Motion to Substitute Personal Representative for
Deceased Cross-Defendant, Allowing Action to be Continued against Personal
Representative, and Allowing the Filing of a supplemental Cross-Complaint.

Cross-Complainant Lewit, Hackman, Shapiro,
Marshall, & Harlan's Motion to Substitute Personal Representative for
Deceased Cross-Defendant, Allowing Action to be Continued against Personal
Representative, and Allowing the Filing of a supplemental Cross-Complaint is
GRANTED.

Cross-Complainant to provide
notice.

Dated: August 4, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court